

## 25VECV03655 25VECV03655

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-08-13

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25VECV03655 Torres v Jaguar

FOR THE FSC

COUNSEL, PARTIES, AND WITNESSES ARE REQUIRED TO  
COMPLY WITH ALL LOCAL RULES BUT THE COURT REITERATES THESE SPECIFIC LOCAL  
RULES:

3.183 OBJECTIONS TO CLOSING ARGUMENT Any objection to a closing argument should be argued outside the jurors' hearing at the side bench. If the trial judge is uncertain about whether there has been a misstatement of the evidence in final argument, the jurors may be advised to consult their own memories and notes. (Rule 3.183 new and effect

3.112 EFFECT OF ASKING ANOTHER QUESTION Counsel must not repeat the witness' answer to the prior question before asking another question. Counsel must wait until the witness has completed the answer before asking another question. If counsel asks a new question before the witness answers the pending question or an objection thereto is ruled upon, counsel will be deemed to have withdrawn the earlier question. This applies to voir dire.

3.158 USE OF DEPOSITIONS, INTERROGATORIES AND REQUESTS FOR ADMISSION Before reading into evidence any portion of any deposition, interrogatory or request for admission, or showing any video deposition, counsel must obtain leave of court and must then advise the court and opposing counsel which pages and lines of the deposition or the numbers of the interrogatories or requests for admission are to be read. Prior to such

reading, opposing counsel must be given a reasonable opportunity to read the same and interpose any objections thereto. If counsel intends to read multiple interrogatories into evidence, that counsel should make extracts of the pertinent portions of questions and answers and furnish sufficient copies for adversaries and the court before reading. Those extracts should be prepared in a form so that the question answered immediately precedes the answer and the date or other description of the particular set of interrogatories appear on the extract. The same procedure will apply to requests for admissions and responses thereto.

**3.120 POLICY AGAINST INDICATION AS TO TESTIMONY** Persons in the courtroom, including the parties and counsel, must not indicate, by facial expression, shaking of the head, gesturing, shouts, or other conduct their disagreement with or approval of testimony or other evidence. Counsel must so instruct parties they represent, witnesses they call, and any persons accompanying them.

**3.125 OFFERS TO STIPULATE TO BE OUT OF JURY'S HEARING** Offers to stipulate must be made outside the hearing of jurors. While the court is in session, counsel wishing to stipulate must first obtain leave of court and then confer with other counsel outside the hearing of the jurors. Do not solicit a stipulation in front of the jury.

**3.131 COUNSEL'S DEMONSTRATING OR DISPLAYING REPRESENTATIONS OF TESTIMONY TO THE JURY DURING PRESENTATION OF EVIDENCE** Without the consent of the trial judge, counsel may not, during presentation of evidence, summarize, diagram, calculate, or outline testimony or evidence in a manner displayed to the jury. This includes, but is not limited to, using a chalkboard, paper on a bulletin board, overhead projection device, computer or other word processing device to be projected onto a screen, or any other technology.

#### **3.47 MULTIPLE COUNSEL –**

**MOTIONS** In the absence of permission by the court, only one attorney for a party may present oral argument on a motion, application, or issue. Upon the request of a party, the court may, in its discretion, allow more than one attorney per party to argue. In making the request, counsel may present the issue of providing an opportunity for a less experienced attorney.

**3.96 ADDRESSING OTHERS** During trial, counsel must not exhibit familiarity with witnesses, parties or other counsel, nor address them by use

of first names (except children).

## TENTATIVE RULINGS ON MOTIONS IN LIMINE

### PLAINTIFF'S MOTIONS IN LIMINE

Are untimely and will not be considered.

### DEFENDANT'S MOTIONS IN LIMINE

DEFENDANT'S MOTION IN LIMINE NO. 1 TO EXCLUDE EVIDENCE OF REPAIR CONCERNS RESOLVED AFTER THE FIRST REPAIR ATTEMPT OR OCCURRING ONLY ONCE (SILVIO DEFENSE): The court cannot rule on this in a vacuum. If what you are asking for the court to follow the law, then fine. If there is something specific that you already know about that would be excluded, then specify it. The court will not make a determination as a matter of law whether there were or were not more than one repair attempt. A motion in limine is not a substitute for an MSJ or MSA.

Local Rule 3.57(b) Summary Adjudication Improper. A motion in limine may not be used for the purpose of seeking summary judgment or the summary adjudication of an issue or issues. Those motions may only be made in compliance with Code of Civil Procedure section 437c and applicable court rules.

DEFENDANT'S MOTION IN LIMINE NO. 2 TO EXCLUDE PLAINTIFF FROM TESTIFYING REGARDING UNREPORTED COMPLAINTS: Reserved for trial. Otherwise, without any specificity, this is a boilerplate motion. Plaintiff is allowed to put on her case. The court will not restrict her as it is the jury's decision whether any complaints were reported or not.

DEFENDANT'S MOTION IN LIMINE NO. 3 TO EXCLUDE REFERENCES TO OR EVIDENCE OF POST-WARRANTY REPAIRS/CONCERNS AND REPAIRS/ CONCERNS NOT COVERED BY ANY APPLICABLE WARRANTY: This is the same as MIL 2.

DEFENDANT'S MOTION IN LIMINE NO. 4 TO EXCLUDE REFERENCES TO OR EVIDENCE OF UNRELATED COMPLAINTS, LAWSUITS, INTERNET CHATS, PRESS COVERAGE, AND OTHER HEARSAY: Grant. No mention shall

be made of these issues without prior court approval.

DEFENDANT'S MOTION IN LIMINE NO. 5 TO EXCLUDE ANY REFERENCES, EVIDENCE, TESTIMONY, OR ARGUMENTS TO HEARSAY STATEMENTS ALLEGEDLY MADE BY DEALERSHIP EMPLOYEES: Deny as to communications between plaintiff and dealership employees concerning warranty repairs because the employees are the agents of the defendant with respect to warranty repairs. Grant as to all else.

DEFENDANT'S MOTION IN LIMINE NO. 6 TO EXCLUDE TESTIMONY REGARDING PLAINTIFF'S SUBJECTIVE EXPECTATIONS OF THE SUBJECT VEHICLE: Deny. Plaintiff can give her lay opinion about her expectations when she purchased the vehicle because it relevant to whether the non-conformities substantially impaired the use, value, or safety of the vehicle.

DEFENDANT'S MOTION IN LIMINE NO. 7 TO EXCLUDE REFERENCING THE DEALERSHIP OR DEALER PERSONNEL AS AGENTS OF JLRNA: Deny as to communications between plaintiff and dealership employees concerning warranty repairs because the employees are the agents of the defendant with respect to warranty repairs. Grant as to all else.

DEFENDANT'S MOTION IN LIMINE NO. 8 TO EXCLUDE LAY OPINION TESTIMONY RELATING TO THE ALLEGED DEFECTS, SUBSTANTIAL IMPAIRMENT OF THE SUBJECT VEHICLE, AND FUTURE FAILURES: This is another boilerplate motion. Reserved for trial. Make the objection at the time of objectionable questions.

DEFENDANT'S MOTION IN LIMINE NO. 9 TO EXCLUDE EVIDENCE OF NONRECOVERABLE EMOTIONAL DISTRESS: The court will follow the law and give appropriate instructions. Otherwise, this is another boilerplate motion. Reserved for trial. Make the objection at the time of objectionable questions.

DEFENDANT'S MOTION IN LIMINE NO. 10 TO EXCLUDE NONRECOVERABLE INCIDENTALS AND CONSEQUENTIAL DAMAGES: The court will follow the law and give appropriate instructions. Otherwise, this is another boilerplate motion. Reserved for trial. Make the

objection at the time of objectionable questions.

DEFENDANT'S MOTION IN LIMINE NO. 11 TO EXCLUDE EVIDENCE, TESTIMONY, OR ARGUMENT THAT THE EXISTENCE OF REPAIR ORDERS ALONE SUBSTANTIALLY IMPAIRED THE VALUE OF THE SUBJECT VEHICLE: It depends on the admissible testimony on this issue. The court will follow the law and give appropriate instructions. Otherwise, this is another boilerplate motion. Reserved for trial. Make the objection at the time of objectionable questions.

DEFENDANT'S MOTION IN LIMINE NO. 12 TO PRECLUDE PLAINTIFF'S COUNSEL FROM QUESTIONING JLRNA'S EMPLOYEES ABOUT SONGBEVERLY AND/ OR WHETHER THE SUBJECT VEHICLE QUALIFIES FOR REPURCHASE UNDER SONG-BEVERLY: Grant.

DEFENDANT'S MOTION IN LIMINE NO. 13 TO PRECLUDE PLAINTIFF FROM INTRODUCING WITNESSES, EVIDENCE, OR CONTENTIONS NOT DISCLOSED IN DISCOVERY AND ANY CLAIMS OR CAUSES OF ACTION NOT SET FORTH IN THE COMPLAINT: This is a boilerplate motion and should not have been filed unless there is something specific to point to. As defendant have the exhibit and witness lists of plaintiffs, they should know if there is a witness, or exhibit they wish to exclude. It depends. If an answer is shown to be false, the court may consider it. But if the response was inadequate and no motion was filed, it will be denied. You must show the court the discovery request, any response and supplemental response. The court will not rule in a vacuum.

DEFENDANT'S MOTION IN LIMINE NO. 14 TO EXCLUDE IRRELEVANT SERVICE BULLETINS AND RECALLS: It depends on the admissible testimony on this issue. The court will follow the law and give appropriate instructions. Otherwise, this is another boilerplate motion. Reserved for trial. Make the objection at the time of objectionable questions.